

GOVERNMENT OF INDIA
MINISTRY OF FINANCE — DEPARTMENT OF REVENUE
CENTRAL GOODS AND SERVICES TAX ACT, 2017

CGST COMMISSIONERATE, DELHI CENTRAL
FORM GST DRC-01 [See Rule 142(1)]

Reference No. F. No. CGST/DEL-C/73/2025-26/003812
Date of Issue: 10-07-2026

To,
M/s PRAKASH ELECTRONICS PRIVATE LIMITED
GSTIN: 07AABCP4521R1Z3
C-47, Okhla Industrial Area, Phase-II, New Delhi – 110 020

Tax Period: April 2023 to March 2024 F.Y.: 2023-24
Act: Central Goods and Services Tax Act, 2017
Section/Sub-section under which SCN is issued: **Section 73(1) of the CGST Act, 2017**
SCN Reference No.: CGST/DEL-C/SCN/73/2026/003812 Date: 10-07-2026

SUMMARY OF SHOW CAUSE NOTICE

(a) Brief Facts of the Case:

During scrutiny of returns filed by M/s Prakash Electronics Private Limited (GSTIN: 07AABCP4521R1Z3) for F.Y. 2023-24, it has been observed that the Input Tax Credit (ITC) availed by the taxpayer in Form GSTR-3B amounting to Rs. 7,84,500/- is in excess of the ITC reflected in the auto-generated Form GSTR-2B for the corresponding tax period by Rs. 3,12,000/-. The excess ITC availed is in contravention of Section 16(2)(aa) of the CGST Act, 2017, read with Rule 36(4) of the CGST Rules, 2017, which mandates that ITC can only be availed to the extent reflected in GSTR-2B.

(b) Grounds:

- The taxpayer has availed ITC of Rs. 3,12,000/- in excess of the ITC appearing in GSTR-2B. Such excess availment is not permissible under Section 16(2)(aa) of the CGST Act, 2017.
- The suppliers corresponding to the claimed ITC have either not filed their GSTR-1 returns or have filed with discrepancies, resulting in non-reflection in GSTR-2B.
- The taxpayer is liable to reverse the ineligible ITC along with interest under Section 50 and penalty under Section 73 of the CGST Act, 2017.

(c) Tax and Other Dues:

Sr.	Tax Period	Act	State (POS)	Tax/Cess (Rs.)	Interest (Rs.)	Penalty (Rs.)	Total (Rs.)
1	Apr 23–Mar 24	CGST	Delhi	1,56,000	28,080	—	1,84,080
2	Apr 23–Mar 24	SGST	Delhi	1,56,000	28,080	—	1,84,080
			Total	3,12,000	56,160	To be det.	3,68,160

You are hereby called upon to show cause as to why the Input Tax Credit of **Rs. 3,12,000/-** (Rupees Three Lakhs Twelve Thousand Only) availed in excess of GSTR-2B, along with interest of **Rs. 56,160/-** under Section 50 and penalty under Section 73 of the CGST Act, 2017 should not be demanded and recovered from you.

You are required to file your reply to this notice within TWENTY-ONE (21) DAYS from the date of service of this notice using Form DRC-06 on the GST common portal (www.gst.gov.in). A personal hearing has been scheduled on 04-08-2026 at 3:00 PM.

(Authorized Signatory)
Rakesh Kumar Sharma
Deputy Commissioner, CGST
CGST Commissionerate, Delhi Central